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# TAB 5



## Board of Education Report

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**File #:** Rep-266-23/24, **Version:** 1

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### **Adoption of the Negative Declaration for the Canoga Park High School Major Modernization Project May 7, 2024**

#### **Office of Environmental Health & Safety**

#### **Action Proposed:**

Review and adopt the Negative Declaration (ND) for the proposed Canoga Park High School Major Modernization Project (Project) prepared in compliance with the California Environmental Quality Act (CEQA; Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.).

#### **Background:**

On October 12, 2021, the Board approved the project definition for the due diligence, planning, and feasibility activities necessary to develop the scope, budget, and schedule for the proposed Project (Board Report No. 085-21/22). Subsequently, on November 15, 2022, the Board approved the redefinition of the proposed Project to incorporate its full scope, budget, and schedule (Board Report No. 074-22/23). This authorized staff to begin the environmental review, design, procurement, and other activities necessary to implement the proposed Project.

The proposed Project is located on a 21.38-acre school campus at 6850 Topanga Canyon Boulevard within the City of Canoga Park in the County of Los Angeles (Board District 3, Region North). Canoga Park High School (School) originally opened in 1914. All existing buildings were constructed between 1924 and 1977. As of the 2023-2024 Electronic Capacity Assessment Review, the school served approximately 1,460 students in grades 9 through 12.

The proposed Project will construct new facilities, including a two-story Food Services/Classroom Building with 12 classrooms and associated support spaces, food services, and student store; a new lunch shelter; a one-story Maintenance & Operations Building; and new covered walkways. The proposed Project also includes upgrades to the existing football field and running track to include replacing the existing dirt running track with a synthetic system, new natural grass field with irrigation, upgrades to the track features within the field, repairs to the bleachers, new home and visitors' restrooms and concessions, and a new scoreboard. The proposed Project also includes exterior painting for all remaining buildings and structures at the School, voluntary barrier removal, and infrastructure upgrades to ensure compliance with the Americans with Disabilities Act. The proposed Project will maintain the School's current capacity and total number of classrooms (78 classrooms).

The proposed Project includes the demolition of four permanent buildings (Cafeteria Building/Lunch Pavilion including attached covered walkway, Shop Building #1, Classroom Building #5, and Parent Center Building), seven relocatable classroom buildings, three restroom buildings, stadium ticket booth, existing running track, existing football field and irrigation, existing scoreboard, and miscellaneous storage buildings. Interim facilities will be installed to allow the School to remain operational and minimize impact during construction.

The proposed Project also includes utility upgrades; a new parking lot; new hardcourt play areas with striping and equipment; new outdoor learning environments; the removal and replacement of trees; landscaping and irrigation; hardscaping; fencing, gates, and site furnishings.

The site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was prepared for the proposed Project in accordance with Department of Toxic Substances Control (DTSC) guidelines. A Soil Removal Plan (SRP) would be implemented as part of the proposed Project to address the removal of contaminated soil. Similar reports will be prepared to address suspect asphalt and building materials encountered during construction. There is no direct student and staff exposure to the impacted soils since the affected soils are under asphalt pavement or will be off-limits. The SRP, which includes health and safety procedures, would ensure students and staff are not exposed to impacted soils during the removal work.

The District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.

Environmental review of the proposed Project found that there would be no significant impacts as a result of construction and operation of the Project with the implementation of LAUSD's Standard Conditions of Approval. This evaluation, as documented in the Initial Study (IS), resulted in the preparation of a ND (State Clearinghouse Number 2024020612). The District circulated the IS/ND for a 30-day public review period from February 15, 2024, to March 15, 2024. Copies of the IS/ND, PEA-E, and SRP were available for review electronically on the OEHS website and on the State Clearinghouse website and printed copies made available for public review at OEHS District Headquarters at Beaudry and at Canoga Park High School.

The District posted the Notice of Intent to Adopt a Negative Declaration (NOI) on the OEHS website during the public review period, mailed the NOI to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students, and published the NOI in three local newspapers (Daily News, La Opinión, and Valley Vantage). The District filed the NOI with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52, and known interested parties.

During the public review period, a public community meeting was held on February 29, 2024, to provide information about the proposed Project and receive comments on the IS/ND. The public community meeting was advertised along with the NOI through direct mailing of occupants within 0.25-mile of the Project site, door-to-door distribution of event flyers, and in three local newspapers (Daily News, La Opinión, and Valley Vantage). The meeting included an overview of the proposed Project and the contents and findings of the IS/ND, and gave faculty, staff, agencies, organizations, parents/guardians, and community members the opportunity to make verbal and written comments on the Project and the IS/ND.

At the end of the public review period, the District received comment letters from two agencies and written and verbal comments from individuals during the community meeting. All letters and written comments were responded to by the District and are included in the attached Responses to Comments (RTC). The requirements set forth in the CEQA Guidelines Section 15073.5 regarding recirculation are not met.

**Expected Outcomes:**

Staff anticipates that the Board will review and make a determination on the attached Resolution to adopt the ND pursuant to CEQA and State CEQA Guidelines. This action is required for the Board to consider approval of the Project.

**Board Options and Consequences:**

A “Yes” vote to adopt the Negative Declaration would enable the Board to consider approval of the Project.

A “No” vote to adopt the Negative Declaration would prevent the Board from approving the proposed Project, and the proposed Project could not proceed into construction.

**Policy Implications:**

This action does not change District policy. This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program (SUP). On August 24, 2021, the Board adopted an update to the SUP to integrate Measure RR funding and priorities into its operational framework and approved the Measure RR Implementation Plan (Implementation Plan) to help guide the identification of sites and development of project proposals (Board Report No. 027-21/22). The Implementation Plan included, among other things, the development of seven major modernization projects, one in each Board District and the Project is in Board District 3.

**Budget Impact:**

This action does not have a budget impact.

**Student Impact:**

The proposed Project, once completed, will help ensure that the students attending the school are provided with a safe and healthy environment, and up-to-date facilities that promote learning.

**Equity Impact:**

The intent of the major modernization project is to address buildings and grounds that pose a safety concern and have the greatest need for upgrades with emphasis placed on seismic safety, reducing Los Angeles Unified’s reliance on relocatable buildings, and addressing the most critical/severe physical conditions. While the Project is extensive in nature, less critical items may not be addressed. This approach allows the District to reach more schools with the limited funding available.

**Issues and Analysis:**

Environmental review of the proposed Project found that, with the incorporation of District Standard Conditions and Approvals, Project Design Features, as well as all applicable state, federal, and local regulations, there would be no significant impact as a result of the Project.

The District is the “Lead Agency” as defined in the state CEQA Guidelines §§15050-15053, and the Board shall review and consider the Negative Declaration and its supporting documents and comments.

**Attachments:**

- Attachment A: Resolution of the Los Angeles Unified School District Board Adopting the Negative Declaration for the Canoga Park High School Major Modernization Project

Due to the file size the following attachments may be view/downloaded from the links below:

- Attachment B: [Initial Study/ Negative Declaration and Appendices](https://drive.google.com/file/d/1gDpVn3qCQgmykD87tDpsVupBkWwn8fVe/view?usp=sharing)  
<<https://drive.google.com/file/d/1gDpVn3qCQgmykD87tDpsVupBkWwn8fVe/view?usp=sharing>>
- Attachment C: [Responses to Comments](https://drive.google.com/file/d/1D9CEiQbsqezjOXP9gdnCJziQ7LVrtJkf/view?usp=sharing)  
<<https://drive.google.com/file/d/1D9CEiQbsqezjOXP9gdnCJziQ7LVrtJkf/view?usp=sharing>>

Linked materials of previously adopted Board reports referenced in the background and policy implications sections:

- Adopted October 12, 2021, [Board Report No. 085-21/22](https://drive.google.com/file/d/1r8zKfpUx9x8QnogZDlKuED7E6EW1aAX5/view?usp=sharing)  
<<https://drive.google.com/file/d/1r8zKfpUx9x8QnogZDlKuED7E6EW1aAX5/view?usp=sharing>>
- Adopted November 15, 2022, [Board Report No. 074-22/23](https://drive.google.com/file/d/1DSVLfmXspPK6gYjz2SyxAbOTth_QAKpU/view?usp=sharing)  
<[https://drive.google.com/file/d/1DSVLfmXspPK6gYjz2SyxAbOTth\\_QAKpU/view?usp=sharing](https://drive.google.com/file/d/1DSVLfmXspPK6gYjz2SyxAbOTth_QAKpU/view?usp=sharing)>
- Adopted August 24, 2021, [Board Report No. 027-21/22](https://drive.google.com/file/d/1pmN0wD9uHE7xHUBRKYiER4UWNbfK2W2g/view?usp=sharing)  
<<https://drive.google.com/file/d/1pmN0wD9uHE7xHUBRKYiER4UWNbfK2W2g/view?usp=sharing>>

**Informatives:**

None.

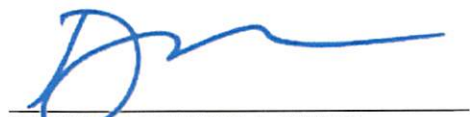
**Submitted:**

04/09/24

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**RESPECTFULLY SUBMITTED,**  
ALBERTO M. CARVALHO  
Superintendent**APPROVED BY:**  
PEDRO SALCIDO  
Deputy Superintendent  
Business Services & Operations  
ANDRES E. CHAIT  
Chief of School Operations**REVIEWED BY:**  
DEVORA NAVERA REED  
General Counsel

☒ Approved as to form.

**APPROVED & PRESENTED BY:**  
CARLOS A. TORRES  
Director  
Office of Environmental Health & Safety**REVIEWED BY:**  
NOLBERTO DELGADILLO  
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.



## LOS ANGELES UNIFIED SCHOOL DISTRICT Board of Education Report

### **RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF EDUCATION ADOPTING THE NEGATIVE DECLARATION FOR THE CANOGA PARK HIGH SCHOOL MAJOR MODERNIZATION PROJECT**

Whereas, on November 3, 2020, voters in Los Angeles Unified School District (Los Angeles Unified or District) passed Measure RR (School Upgrades and Safety Measure) as a funding mechanism to help address the significant and unfunded needs of LAUSD public school facilities; and

Whereas, under Measure RR and in conjunction with other, ongoing LAUSD Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21<sup>st</sup> century learning at hundreds of neighborhood schools District-wide; and

Whereas, on October 12, 2021, the Board approved project definition for the due diligence, planning, and feasibility activities necessary to propose scope recommendations, budget, and schedule for the proposed Project. Subsequently, on November 15, 2022, the Board approved the project definition for the proposed Project to begin the environmental review, design, procurement, and other activities necessary to implement the proposed Project; and

Whereas, the proposed Project is located on a 21.38-acre school campus at 6850 Topanga Canyon Boulevard within the City of Canoga Park in the County of Los Angeles (Board District 3, Region North). Canoga Park High School (School) originally opened in 1914. All existing buildings were constructed between 1924 and 1977. As of the 2023-2024 Electronic Capacity Assessment Review, the school served approximately 1,460 students in grades 9 through 12; and

Whereas, proposed Project will construct new facilities, including a two-story Food Services/Classroom Building with 12 classrooms and associated support spaces, food services, and student store; a new lunch shelter; a one-story Maintenance & Operations Building; and new covered walkways. The proposed Project also includes upgrades to the existing football field and running track to include replacing the existing dirt running track with a synthetic system, new natural grass field with irrigation, upgrades to the track features within the field, repairs to the bleachers, new home and visitors' restrooms and concessions, and a new scoreboard. The proposed Project also includes exterior painting for all remaining buildings and structures at the School, voluntary barrier removal, and infrastructure upgrades to ensure compliance with the Americans with Disabilities Act. The proposed Project will maintain the School's current capacity and total number of classrooms (78 classrooms); and

Whereas, proposed Project includes the demolition of four permanent buildings (Cafeteria Building/Lunch Pavilion including attached covered walkway, Shop Building #1, Classroom Building #5, and Parent Center Building), seven relocatable classroom buildings, three restroom buildings, stadium ticket booth, existing running track, existing football field and irrigation, existing scoreboard, and miscellaneous

storage buildings. Interim facilities will be installed to allow the School to remain operational and minimize impact during construction; and

Whereas, proposed Project also includes utility upgrades; a new parking lot; new hardcourt play areas with striping and equipment; new outdoor learning environments; the removal and replacement of trees; landscaping and irrigation; hardscaping; fencing, gates, and site furnishings; and

Whereas, the site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was prepared for the proposed Project in accordance with Department of Toxic Substances Control (DTSC) guidelines. A Soil Removal Plan (SRP) would be implemented as part of the proposed Project to address the removal of contaminated soil. Similar reports will be prepared to address suspect asphalt and building materials encountered during construction. There is no direct student and staff exposure to the impacted soils since the affected soils are under asphalt pavement or will be off-limits. The SRP, which includes health and safety procedures, would ensure student and staff are not exposed to impacted soils during the removal work; and

Whereas, the District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, environmental review of the proposed Project as documented in the Initial Study (IS), resulted in the preparation of a Negative Declaration (ND)(State Clearinghouse Number 2024020612), which found that the Project would have no significant effects on the environment as a result of construction and operation of the Project with the implementation of LAUSD's Standard Conditions of Approval; and

Whereas, on February 8, 2024, the District filed the Notice of Intent to Adopt a Negative Declaration (NOI) pursuant to the requirements of CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, from February 15, 2024, to March 15, 2024, the District circulated the IS/ND, PEA-E, and SRP for public review with electronic copies on the OEHS and State Clearinghouse websites and printed copies at the OEHS District Headquarters and at Canoga Park High School; and

Whereas, the District responded to written and verbal comments received during the public review period and at a community meeting in the Responses to Comments; and

Whereas, the District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053, and the Board shall review and consider the ND and its supporting documents and comments.

Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it



Resolved further, that the Board hereby:

1. Finds that the ND was completed in compliance with CEQA and State CEQA Guidelines, as amended; and
2. Finds that the ND reflects the District's independent judgment and analysis; and
3. Finds that the Board reviewed and considered the information in the ND before making a decision to approve the Project; and
4. Adopts the ND; and be it

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California, and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

**PASSED, APPROVED AND ADOPTED this 7th day of May 2024, by the following vote:**

**AYES:**

**NOES:**

**ABSENT:**

**ABSTAIN:**

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**Michael McLean**  
**Executive Officer of the Board of Education**

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**Date**